---CHUNK---

SOURCE: MEPC.328(76).pdf
.1 14.4 g/kWh when n is less than 130 rpm;

.2 44 · n(0.23) g/kWh when n is 130 or more but less than 2,000 rpm;

.3 7.7 g/kWh when n is 2,000 rpm or more.

Tier III

5.1 Subject to regulation 3 of this Annex, in an emission control area designated for Tier III NOx control under paragraph 6 of this regulation (NOx Tier III emission control area) , the operation of a marine diesel engine that is installed on a ship is prohibited:

.1 except when the emission of nitrogen oxides (calculated as the total weighted emission of NO2) from the engine is within the following limits, where n = rated engine speed (crankshaft revolutions per minute):

.1 3.4 g/kWh when n is less than 130 rpm;

.2 9 · n(0.2) g/kWh when n is 130 or more but less than 2,000 rpm;
.3 2.0 g/kWh when n is 2,000 rpm or more;
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 23 -

when

.2 that ship is constructed on or after:

.1 1 January 2016 and is operating in the North American Emission

---CHUNK---

SOURCE: MEPC.328(76).pdf
1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 23 -

when

.2 that ship is constructed on or after:

.1 1 January 2016 and is operating in the North American Emission Control Area or the United States Caribbean Sea Emission Control Area;

.2 1 January 2021 and is operating in the Baltic Sea Emission Control Area or the North Sea Emission Control Area;

.3 that ship is operating in a NOx Tier III emission control area other than an emission control area described in paragraph 5.1.2 of this regulation, and is

constructed on or after the date of adoption of such an emission control area, or a later date as may be specified in the amendment designating the NOx Tier III emission control area, whichever is later.

5.2 The standards set forth in paragraph 5.1.1 of this regulation shall not apply to:

.1 a marine diesel engine installed on a ship with a length (L), as defined in regulation 1.19 of Annex I to the present Convention, of less than 24 metres when it has been specifically designed, and is used solely, for recreational purposes; or

.2 a marine diesel engine installed on a ship with a combined nameplate diesel

---CHUNK---

SOURCE: MEPC.328(76).pdf
when it has been specifically designed, and is used solely, for recreational purposes; or

.2 a marine diesel engine installed on a ship with a combined nameplate diesel engine propulsion power of less than 750 kW if it is demonstrated, to the satisfaction of the Administration, that the ship cannot comply with the standards set forth in paragraph 5.1.1 of this regulation because of design or construction limitations of the ship; or

.3 a marine diesel engine installed on a ship constructed prior to 1 January 2021 of less than 500 gross tonnage, with a length (L), as defined in regulation 1.19 of Annex I to the present Convention, of 24 metres or over when it has been specifically designed, and is used solely, for recreational purposes.

5.3 The tier and on/off status of marine diesel engines installed on board a ship to which paragraph 5.1 of this regulation applies which are certified to both Tier II and Tier III or which are certified to Tier II only shall be recorded in such logbook or electronic record book as prescribed by the Administration at entry into and exit from a NO x Tier III emission control

---CHUNK---

SOURCE: MEPC.328(76).pdf
are certified to Tier II only shall be recorded in such logbook or electronic record book as prescribed by the Administration at entry into and exit from a NO x Tier III emission control area, or when the on/off status changes within such an area, together with the date, time and position of the ship.

5.4 Emissions of nitrogen oxides from a marine diesel engine subject to paragraph 5.1 of this regulation that occur immediately following building and sea trials of a newly constructed ship, or before and following converting, repairing, and/or maintaining the ship, or maintenance or repair of a Tier II engine or a dual fuel engine when the ship is required to not have gas fuel or gas cargo on board due to safety requirements, for which activities take place in a shipyard or other repair facility located in a NOx Tier III emission control area, are temporarily exempted provided the following conditions are met:

.1 the engine meets the Tier II NOx limits; and
.2 the ship sails directly to or from the shipyard or other repair facility, does not load or unload cargo during the duration of the exemption, and follows any

RESOLUTION MEPC.328(76)

---CHUNK---

SOURCE: MEPC.328(76).pdf
.1 the engine meets the Tier II NOx limits; and
.2 the ship sails directly to or from the shipyard or other repair facility, does not load or unload cargo during the duration of the exemption, and follows any
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 24 -

additional specific routeing requirements indicated by the port State in which the shipyard or other repair facility is located, if applicable.

5.5 The exemption described in paragraph 5.4 of this regulation applies only for the following period:

.1 for a newly constructed ship, the period beginning at the time the ship is delivered from the shipyard, including sea trials, and ending at the time the ship directly exits the NOx Tier III emission control area(s) or, with regard to a ship fitted with a d ual fuel engine, the ship directly exits the NO x Tier III emission control area(s) or proceeds directly to the nearest gas fuel bunkering facility appropriate to the ship located in the NOx Tier III emission control area(s);

---CHUNK---

SOURCE: MEPC.328(76).pdf
emission control area(s) or proceeds directly to the nearest gas fuel bunkering facility appropriate to the ship located in the NOx Tier III emission control area(s);

.2 for a ship with a Tier II engine undergoing conversion, maintenance or repair, the period beginning at the time the ship enters the NO x Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time the ship is released from the shipyard or other repair facility and directly exits the NO x Tier III emission control area (s) after performing sea trials, if applicable; or

.3 for a ship with a dual fuel engine undergoing conversion, maintenance or repair, when the ship is required to not have gas fuel or gas cargo on board due to safety requirements, the period beginning at the time the ship enters the NOx Tier III emission control area(s) or when it is degassed in the NO x Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time when the ship is released from the shipyard or other repair facility and directly exits the NO x Tier III emission

---CHUNK---

SOURCE: MEPC.328(76).pdf
Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time when the ship is released from the

shipyard or other repair facility and directly exits the NO x Tier III emission control area(s) or proceeds directly to the nearest gas fuel bunkering facility appropriate to the ship located in the NOx Tier III emission control area(s).

Emission control area

6 For the purposes of this regulation, a NOx Tier III emission control area shall be any sea area, including any port area, designated by the Organization in accordance with the criteria and procedures set forth in appendix III to this Annex. The NOx Tier III emission control areas are:

.1 the North American Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex;

.2 the United States Caribbean Sea Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex;

.3 the Baltic Sea area as defined in regulation 1.11.2 of Annex I of the present Convention; and

.4 the North Sea area as defined in regulation 1.14.6 of Annex V of the present

---CHUNK---